

24STCV13243 24STCV13243

County: los-angeles

Division: Civil Law and Motion

Department: 617

Hearing date: 2026-09-18

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C617%2C09%2F18%2F2026

Source SHA-256: bf27baf28af53f360e025c5df9159e96386d07060721d1f81492fe0263ae06b5

Case Number: 24STCV13243 Hearing Date: September 18, 2026 Dept: 617

Dept.

617

Date:

9-18-26

Case

#: 24STCV13243

Trial

Date: 3-22-27

SUMMARY JUDGMENT/ADJUDICATION

MOVING

PARTY: Defendant, Culver City Unified School District

RESPONDING

PARTY: Plaintiff, New Earth

RELIEF

REQUESTED

Motion

for Summary Judgment, or, in the Alternative, Summary Adjudication

SUMMARY

OF ACTION

Plaintiff

New Earth filed the instant breach of contract action against Defendant Culver City Unified School District. Plaintiff alleges that Defendant breached the terms of the parties' contract when it failed to pay Plaintiff \$1.5 million for support services Plaintiff provided to Defendant's students, as delineated in the Proposal submitted to Defendant. Plaintiff asserts causes of action for: (1) Breach of Contract and (2) Breach of the Implied Covenant of Good Faith and Fair Dealing.

RULING: Granted.

Evidentiary

Objections: Sustained in part.

Defendant's

evidentiary objections Nos. 1-2 are sustained on relevance grounds. Objection No. 4 is sustained only as to the portion of the paragraph stating, "when signed by the District, would become a binding contract," because this is an improper legal conclusion. The remainder of Defendant's evidentiary objections are overruled.

The

instant hearing comes after the Court continued Defendant's motion for summary judgment, or alternatively summary adjudication, to permit supplemental briefing on an issue raised by the Court: does the Purchase Order constitute a counteroffer? (County of Santa Clara v. Atlantic Richfield Co. (2006) 137 Cal.App.4th 292, 325-26.) Based on the supplemental briefing submitted, the Court concludes that Plaintiff fails to raise a triable issue as to whether its proposal was a contract and Defendant's motion for summary judgment is granted.

The pleadings frame the issues for motions, "since it is those allegations to which the motion must respond. (Citation.)" (Scolinos v. Kolts (1995) 37 Cal. App. 4th 635, 640-641; FPI Development, Inc. v. Nakashima (1991) 231 Cal.App.3d 367, 382-83; Jordan-Lyon Prods., LTD. v. Cineplex Odeon Corp. (1994) 29 Cal.App.4th 1459, 1472.) The purpose of a motion for summary judgment or summary adjudication "is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute." (Aguilar v. Atl. Richfield Co. (2001) 25 Cal.4th 826, 843.) "Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to

grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

"On

a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact." (Scalf v. D.B. Log Homes, Inc.

(2005) 128 Cal.App.4th 1510, 1519.) A defendant moving for summary judgment

"has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . .

cannot be established." (Code Civ.

Proc., § 437c, subd. (p)(2).) "Once the defendant . . . has met that burden,

the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto." (Ibid.)

"When

deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment." (Avivi v. Centro Medico

Urgente Medical Center (2008) 159 Cal.App.4th 463, 467; see also Code

Civ. Proc., § 437c, subd. (c).) "An issue of fact can only be created by a conflict in the evidence. It is not created by speculation, conjecture, imagination or guesswork." (Lyons v.

Security Pacific National Bank (1995) 40 Cal.App.4th 1001, 1041 (citation omitted).)

The

issue presented by the Court was whether the Purchase Order was a counteroffer.

"Consent is not mutual, unless the parties all agree upon the same thing in the same sense." (Civ. Code, § 1580.) "[T]erms proposed in an offer must be met exactly, precisely and unequivocally for its acceptance to result in the formation of a binding contract." (Apablaza v. Merritt & Co. (1959)

176 Cal.App.2d 719, 726.) A purported acceptance that includes terms different from those in the offer is a counteroffer, which, if not accepted by the original offeror, "amounts to nothing." (Id. at p. 726.)

The

evidence establishes that the Purchase Order was a counteroffer that terminated Plaintiff's original offer via its Proposal. Under Education Code section 17604, a contract is not valid against a school district "until the same shall have been approved or ratified by the governing board, the approval or ratification to be evidenced by a motion of the board duly passed and adopted." "Persons dealing with a school district are chargeable with notice of limitations on its power to contract." (Santa Monica Unified Sch. Dist. v. Persh (1970) 5 Cal.App.3d 945, 952.) Defendant's governing board approved the contract by issuing the Purchase Order for Year 2 services, which provided for payment of \$600,000 in contrast to the \$1.5 million contemplated by the Proposal. [Jiménez Decl. ¶ 6, Ex. D; Compl. ¶ 5, Ex. 1.] The Purchase Order incorporated by reference Defendant's Standard Terms and Conditions, which conspicuously indicated that Plaintiff's Proposal was an "offer" and the Purchase Order an "acceptance." [Jiménez Decl. ¶ 7, Ex. E, §§ 1.5, 2.] The Terms and Conditions further provided that the Purchase Order "constitutes the entire agreement between the parties and supersedes any prior or contemporaneous written or oral understanding or agreement and any contrary provisions on packing slips, invoices, or other documents submitted by the Contractor." [Id. § 23.] "Should any such document from Contractor contain additional or different terms than this Agreement, those terms shall be considered proposals by Contractor which are hereby rejected." [Ibid.] This evidence sufficiently shows that the Purchase Order was a counteroffer to Plaintiff's Proposal. The burden therefore shifts to Plaintiff to raise a triable issue as to whether the terms of the Proposal governed the relationship between the parties.

Plaintiff

fails to meet its burden. The sole item of evidence presented in Plaintiff's supplemental opposition is Defendant's response to the following interrogatory: "If you contend that the CONTRACT is not a valid and binding written contract, please describe in detail the facts upon which this contention is based." [Tomasulo Decl. ¶ 2, Ex. 1, No. 4.] Plaintiff contends that a portion of Defendant's response stating, "Notwithstanding, the District is presently unaware of facts supporting such a contention," shows that Defendant conceded the Proposal was the contract between the parties and precludes a contrary finding. [Ibid.] Not so. Plaintiff omits the preceding segment of Defendant's response where it stated that the Proposal "more closely resembles a proposal by New Earth with a description of New Earth's proposed services and estimated cost, than it resembles a formal contract," and identified it lacked typical terms. [Ibid.]

Defendant's response is therefore consistent with the Court's ruling that the Proposal was not a contract. In any event, "[a]nswers to written interrogatories 'do not assume the status of judicial admissions'" and may be contradicted by later evidence. (*Cortina v. North American Title Co.* (2026) 120 Cal.App.5th 1030, 1106.) Defendant did so in its moving papers when it argued and presented evidence that the Proposal was not a contract but an offer. [Mot. at pp. 15-16.] Plaintiff therefore fails to raise a triable issue of material fact as to whether the Proposal was a contract.

Because

Plaintiff's good faith and fair dealing claim is predicated on Defendant's failure to pay the \$1.5 million contemplated by the Proposal, its claim fails. As outlined above, the parties did not enter into a contract for services at this price and "[w]here there is no underlying contract there can be no duty of good faith arising from the implied covenant." (*Horn v. Cushman & Wakefield Western, Inc.* (1999) 72 Cal.App.4th 798, 819.) Defendant's motion for summary judgment is thus granted.

Defendant
to give notice.